



CHAPTER xxxiv.

An Act to confirm a Provisional Order of the Minister of Health relating to the borough of Shrewsbury.

[30th July 1948.]

WHEREAS under the provisions of the Public Health Act 38 & 39 1875 the Minister of Health has made a Provisional Order ^{Vict. c. 55.} which needs confirmation by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order of the Minister of Health which as amended Order in is set out in the schedule to this Act is hereby confirmed and schedule shall have full validity and force. confirmed.

2. This Act may be cited as the Ministry of Health Provisional Short title. Order Confirmation (Shrewsbury) Act 1948.

SCHEDULE.

BOROUGH OF SHREWSBURY

Provisional Order altering and partially repealing local Acts.

WHEREAS the mayor aldermen and burgesses of the borough of Shrewsbury in the county of Salop acting by the council (in this Order called "the Corporation") are the local authority for the said borough for the purposes of the Public Health Act 1875:

And whereas under powers conferred on them by the Shrewsbury Cattle Market Act 1847 and the Shrewsbury Improvement Act 1855 the Corporation have established and hold a cattle market and also a market for the sale of corn butter cheese fish poultry and general produce and merchandise:

11 Vict. c. xvi.
18 & 19 Vict.
c. clxxviii.

And whereas the Corporation are desirous of being empowered from time to time to alter the place at which the said cattle market and other markets are or may be held to establish and hold new markets and to discontinue the whole or any part of any existing or new markets:

And whereas by section XXII of the Shrewsbury Cattle Market Act 1847 the Corporation are empowered to demand in the cattle market such stallages rents and tolls as they may appoint not exceeding the stallages rents and tolls specified in Schedule (B) to that Act and by sections LXXVI and LXXVII of the Shrewsbury Improvement Act 1855 the Corporation are empowered to demand and take certain tolls specified in Schedule (A) and Schedule (B) to that Act in respect of markets to be provided under that Act and are desirous of substituting new tolls for the tolls specified as aforesaid:

And whereas the Corporation have applied to the Minister of Health (in this Order called "the Minister") for the issue of a Provisional Order to alter and partially repeal the local Acts hereinbefore mentioned for the purposes aforesaid:

Now therefore the Minister in pursuance of the powers given to him by section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

Short title and
commencement.

1. This Order may be cited as the Shrewsbury Order 1948 and shall come into operation on the date of the Act of Parliament confirming it.

Interpretation.

2. In this Order unless the context otherwise requires—

"the Act of 1847" means the Shrewsbury Cattle Market Act 1847;

"the Act of 1855" means the Shrewsbury Improvement Act 1855;

“ the local Acts ” means the Act of 1847 and the Act of 1855;

“ the markets of the Corporation ” means the markets authorised by the Act of 1847 and the Act of 1855;

“ the markets undertaking ” means the markets undertaking of the Corporation.

3. The Corporation without prejudice to any other powers conferred upon them by the local Acts or by any other enactment may— Further powers as to markets.

(1) from time to time alter the places at which the markets of the Corporation respectively are or may be held and may establish and hold new markets and discontinue the whole or any part of any such existing or new markets;

(2) alter enlarge or improve any of the markets of the Corporation;

(3) erect or provide offices shops catering establishments stores warehouses and other tenements or buildings for the purposes of or in connection with any of the markets of the Corporation and the markets undertaking.

4.—(1) The Corporation may with the consent of the Minister lay out and develop any lands at any time belonging to them and held by them for the purpose of the Public Health Acts or of the markets undertaking and not required for any such purpose and may erect and maintain houses shops offices warehouses and any other buildings and may provide parking places for vehicles and stations for public service vehicles and construct sewer drain pave flag channel and kerb streets roads and ways on any such lands. Power to develop lands.

(2) The Corporation may use or dispose of the building or other materials of any houses or premises on any lands belonging to and held by them as aforesaid which they may deem it necessary or desirable to pull down.

5. The Corporation may grant leases (with the right if they think fit of assigning the same with their consent) of the markets market houses market places slaughterhouses weighing houses weighing places and weighing machines from time to time under the management of the corporation or any of them and the tolls or any of them and any of the stalls standing places benches ground spaces and other conveniences in the markets of the Corporation or in any market house or market place for the time being belonging to them or under their management to any person for any period not exceeding seven years and may grant leases (with a similar right) of any office shop catering establishment store warehouse tenement cellar or building situate in any of the markets of the Corporation or forming part of or acquired or erected in connection with the markets undertaking including any premises not used for the time being in connection with the markets undertaking to any person for such period as the Corporation may think fit. Power to grant leases.

6.—(1) The Corporation may as respects any cattle market held by them under the Act of 1847 as altered by this Order demand and take from any person bringing therein the livestock and other articles Market tolls.

mentioned in Schedule A to this Order and in respect of the use of any weighing house or place weight measure scales or machines in any such market tolls rents stallages and charges not exceeding those specified in that schedule.

(2) The Corporation may as respects any general market held by them under the Act of 1855 as altered by this Order demand and take—

- (a) in respect of the occupation or use of any stall bench or standing in such market;
- (b) in respect of the articles mentioned in Schedule B to this Order;
- (c) in respect of the use of any weighing house or place weight measure scales or machines in any such market;

tolls rents and charges not exceeding those specified in Schedule B to this Order.

(3) The Corporation may with the sanction of the Secretary of State from time to time alter or add to the tolls mentioned in the said schedules and any such altered tolls shall as from the date on which they come into operation be substituted for the corresponding tolls payable under the said schedules respectively.

Information as to number weight &c. of animals and articles brought to market.

7.—(1) The person in charge of any vehicle in which and any person by whom animals poultry or other articles are brought for sale in the markets of the Corporation shall give to any authorised market officer such information as to their number and kind or in the case of articles on which tolls are chargeable by reference to weight as to their weight as that officer may call for.

(2) Any person who fails to comply with the provisions of this section shall be liable on summary conviction to a penalty not exceeding two pounds.

Repeals.

8. The undermentioned sections of the local Acts are hereby repealed—

The Act of 1847—

Section XX (Lands for extraordinary Purposes);

Section XXII (Tolls for the Cattle Market);

Schedule (B) (Schedule of Tolls to be taken in the Cattle Market).

The Act of 1855—

Section LXXII (Power to erect and alter Market Houses &c.);

Section LXXVI (Tolls to be taken for the open Market);

Section LXXVII (Tolls to be taken in the covered Market);

Section LXXVIII (Tolls for weighing and measuring as in Sched. (A));

Section LXXIX (Tolls for weighing Carts as in Sched. (A));

Section LXXX (Power to lease the Markets &c. for Three Years);

Section LXXXI (Power to lease Standings in the Markets);

The Schedules.

9. The Corporation shall have power from time to time to borrow such sums as may be necessary for the purposes of this Order:

Power to borrow.

Provided that it shall not be lawful to exercise the powers of borrowing conferred by this section otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 or of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

8 & 9 Geo. 6.
c. 18.
9 & 10 Geo. 6.
c. 58.

10.—(1) The Corporation may (if they think fit) provide a reserve fund in respect of the markets undertaking by setting aside such an amount as they may from time to time think reasonable and investing the same in statutory securities and accumulating the same until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation in respect of the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for the payment of the cost of renewing any part of the buildings or works forming part thereof or for any extension of the said buildings or works or otherwise for the benefit of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

Reserve fund for markets undertaking.

(2) Resort may be had to a reserve fund under the foregoing provisions although such fund may not at any time have reached or may have been reduced below the prescribed maximum.

(3) In section XCIII (Application of profits of Markets and Fairs) of the Act of 1855 for the words from "Fourthly" to the end of the section there shall be substituted the following words:—

"Fourthly in providing a reserve fund in respect of the markets and fairs provided by the Corporation in pursuance of any enactment for the time being authorising them in that behalf:

Fifthly the residue of such tolls and profits shall be paid into the general rate fund of the borough of Shrewsbury."

11.—(1) The Corporation may be authorised by the Minister to purchase land compulsorily for the purposes of the markets undertaking.

Compulsory acquisition of land for markets undertaking.

(2) The Acquisition of Land (Authorisation Procedure) Act 1946 (except section 2 thereof) shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of that Act.

9 & 10 Geo. 6.
c. 49.

12. The Minister may hold any inquiry which he may deem necessary for the purposes of this Order and subsections (2) to (5) of section 290 of the Local Government Act 1933 shall apply accordingly.

Inquiries and expenses.
23 & 24 Geo. 5.
c. 51.

SCHEDULE A.

CATTLE MARKET.

TOLLS:

Livestock whether for sale for delivery to any person for display with or without any other animal or otherwise for each day or part of a day—

	s.	d.
Stallions each	2	0
Horse mare or gelding each	1	0
Colts each		6
Bulls each		9
Fat and dairy cattle each		6
Store cattle each		6
Fat calves each		3
Store calves each		3
Mule or ass each		6
Rams each		6
Sheep lambs and goats each		2
Pigs (by weight) each—		
Exceeding twelve score		6
Exceeding five score but not exceeding twelve score		4
Not exceeding five score		2
Hay straw vetches tares clover or other agricultural produce brought and exposed or offered for sale for each day—		
For every ton	3	0
For any less quantity per cwt.		3
Roots brought and exposed or offered for sale for each day—		
For every ton	1	6
For every less quantity per cwt.		3
For any of the above brought to the market and left there after the closing thereof and remaining therein a charge equivalent to the toll applicable thereto shall be made in respect of each subsequent day or part of a day on which the same shall remain in the market.		

WEIGHING TOLLS:

	d.
For every horse mule or ass	6
For every head of cattle	6
For every five (or less number) of sheep or swine	3
For every other animal	1

SCHEDULE B.

GENERAL MARKET.

s. d.

(a) Stalls benches and standings—

From every occupier of every stall for each superficial square foot or fractional part of a superficial square foot of ground space covered or occupied by any such stall for each day 2

From every person occupying or using any bench provided by the Corporation for each yard run or fractional part of a yard run of such bench so occupied or used for each day I 0

From every occupier of every standing for each superficial square foot or fractional part of a superficial square foot of ground space occupied or used by him for each day I

The size of stalls benches and standings to be in the discretion of the Corporation.

(b) Tolls payable each day for every animal bird article or thing offered for sale in the general market and whether sold or not otherwise than from a shop stall bench or standing—

d.

Turkeys geese and goslings each I½

Ducks fowl ducklings chickens and guinea fowl (other than day-old ducks or chicks) each I

Day-old ducks or chicks per dozen 2

For every additional 6 or part of 6 I

Pheasant partridge grouse hare leveret or other game each I

Rabbits per couple I½

Pigeons per couple ½

For every bird not specified above each ½

Apples pears plums damsons and other fruit per 28 lbs. or part thereof I½

Potatoes carrots parsnips and other root vegetables per 28 lbs. or part thereof I

Green vegetables flowers and small plants per small basket box or hamper containing not more than 1 cubic foot I

Per large basket box or hamper containing more than 1 cubic foot per cubic foot or part thereof I

Shrubs and young trees each I

Butter per 12 lbs. or part of 12 lbs. 2

Cheese per cwt. or part thereof 6

Eggs for the first 3 dozen I

For every additional dozen or part ¼

For horticultural and agricultural produce of any description or quantity not particularly specified in this schedule such reasonable sum or sums as the Corporation may think fit.

(c) Weighing tolls—

(These tolls are not chargeable in respect of weighings solely to ascertain the amount of toll payable under (b) above).

	d.
For every weighing not exceeding 28 lbs.	1
For every weighing exceeding 28 lbs. but not exceeding 56 lbs.	2
For every weighing exceeding 56 lbs. but not exceeding 112 lbs.	3
For every weighing exceeding 112 lbs.	4

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